

LOVE, FREEDOM, AND BONDAGE IN THE WRITINGS OF LEON ROTH

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Abstract

Our aim in this paper is to reconstruct an essential part of the writings of Leon Roth. We analyze his writings through a consideration of the fundamental question that he puts forward concerning the conflict between freedom and bondage in political life. Through a comprehensive survey of his writings, we show the answer Roth has to offer. It is a response grounded in Jewish ethics, with the love of God and love of one's fellow man at its centre. These ethical principles lead the individual towards freedom. From his unique point of view, Roth criticizes Western perceptions of politics, especially the utilitarian approach to the social contract theory. Roth offers a political view that expresses both his Jewish and Classical intellectual background.

Key words: Leon Roth, love of God, love of man, Imitatio Dei, political freedom.

Introduction

The aim of this paper is to reconstruct for the first time the thought of Leon Roth, and to discover its underlying dimensions. The analysis will focus on a strict scheme that is central for him, which is comprised of a theoretical problem and Roth's answer to that problem, an answer that centres on the notion of love. Despite a lifetime of achievements, Leon Roth has been almost forgotten. Therefore, the goal of this article is not to create a dialogue between Roth and other scholars, but instead to create the groundwork for such a dialogue. We will situate love as a crucial political concept in the structure of Roth's system of thought. This could be a starting point for such dialogue.

The most fundamental question in Roth's writings concerns the conflict between freedom and bondage in political life. Is it possible to combine political life with the ideal of individual freedom? According to Roth, this question must be asked in every generation and in every society. Roth rejects the structure of the city-state found in Plato and Aristotle as well as ancient and modern notions of social contract theory as insufficient answers to this

problem. Fundamental to Roth's view of politics is his rejection of the social contract as a utilitarian conception, in favour of an ethical view. His view of politics combines some of the ethical conceptions advanced by Greeks on the one hand, and Jewish ethics on the other. For Roth, the resolution of the conflict between political life and individual freedom requires the knowledge of God, the love of God, and the imitation of God, all of which have political implications.

Roth's writings require that some attention be paid, however briefly, to Roth's historical and intellectual context. The apex of his career came during his years as the first Head of the Philosophy Department, and later as Rector and Dean of Humanities, at the Hebrew University of Jerusalem (1928-1951).¹ These years were dominated by the continuous struggle of the Zionist movement to establish a Jewish state in its biblical homeland. With an eye towards the state-to-be, Roth constantly asked what the unique character and contribution of the only Jewish state would be. He expressed his own aspirations for Hebrew and Jewish renewal by saying that, "Hebrew is not only the lingua franca of Jewry, the only language on the use of which all Jews can agree. It is in itself an inspiration, a call to better things. It is the linguistic side of the cry for a New Jerusalem."²

Roth tried to shape the "good life" in Palestine through a lifetime of writings and breakthrough translations of classical philosophers into Modern Hebrew. He made this project of translation the chief endeavor of his department.³ By 1930 they had assembled a sufficient number of Hebrew texts to constitute a full course in the history of development of modern ideas: this course included complete versions of: "Descartes, Leibniz, Rousseau, Kant, Fichte, Mill and Brentano, and substantial portions of Locke, Berkeley and Hume."⁴ In addition, Roth personally translated Aristotle's *Metaphysics* I and XI, *Politics* I and II, *Ethics* I and II, from Greek into Modern Hebrew.⁵ Israeli students of philosophy continue to read and learn about philosophy through these translations, as a result of which Roth's influence on the study of philosophy in Hebrew continues to be felt.⁶

¹Edward Ullendorff, forword to *Is There a Jewish Philosophy?*, by Leon Roth, ed. Connie Webber (London: Vallentine Mitchel & Co. Ltd. 1999), xiii.

² Leon Roth, *The Hebrew University and Its Place in the Modern World* (New York: American Friends of the Hebrew University, 1945), 7.

³ Neve Gordon and Gabriel G. H. Motzkin, "Between Universalism and Particularism: The Origins of the Philosophy Department at Hebrew University and the Zionist Project," *Jewish Social Studies* 9, no. 2 (January 2003): 109; Ullendorff, forword, xii-xiii.

⁴ Leon Roth, "'Building a Language,'" review of the Philosophical Classics. Vol 1-22, Jerusalem: Hebrew University Press, *Commentary* 2 (1946): 298.

⁵ Roth, "Philosophical Classics," 298.

⁶ Leon Roth. *Guide to Greek Philosophy* (Jerusalem: Mass, 1939; 2nd ed. 1946; 3rd ed. 1952; 4th ed. 1954) [Hebrew]; Leon Roth, *Guide to Modern Philosophy* (Jerusalem: Mass, 1941; 2nd ed. 1950) [Hebrew]; Leon, Roth, *Guide to Political Theory* (Jerusalem: Mass, 1947; 2nd ed. 1952 3rd ed. 1958) [Hebrew].

Despite Roth's great accomplishments, his liberal ideas and his desire to influence Israeli society are not frequently discussed. It is commonplace to explain the oblivion to which he was relegated as a result of the national narrative of the newly established state, one that did not correspond with Roth's universal ideas.⁷ His eventual departure from Israel to England also stymied the spread of his ideas in Israel. In addition Roth, like other twentieth century intellectuals, did not stress his own opinions. Rather, he developed a philosophical argument based on existing, though different, ideas. Therefore, it is the wish of the authors of this article to reconstruct carefully Roth's writings in order to discover his system of thought—concerning the conflict between freedom and bondage in political life—and its underlying dimensions.⁸

1. The Theoretical Problem

In a broad sense all Roth's writings deal with the conflict between political life and personal freedom, albeit in different contexts. Roth shares the liberal assumption that man is free by his nature. But once a man becomes a citizen he is enslaved by civil law and social restraints.⁹ Roth points out two specific and necessary demands on human existence that contradict one another. The first is the freedom of the individual and the second is the demand for social order and its embodiment: the government.¹⁰ This division—political life and

⁷ Gordon & Motzkin, "Between Universalism and Particularism," 116.

⁸ This methodological insight is from Martin Ritter, "Scholarship as a Priestly Craft: Harry A Wolfson On Tradition in A Secular Age," in: *Judaistik zwischen den Disziplinen (Jewish Studies between the Disciplines): Papers in Honor of Peter Schäfer on the Occasion of His 60th Birthday*, ed. Klaus Herrmann et. al. (Leiden : Brill 2003), 436.

⁹ Leon Roth, "National Discipline and Freedom of the Individual," in *Religion and Human Values*, ed. Tzvi Adar, (Jerusalem: Magnes, 1973), 159. [Hebrew]:

"תורת המדינה בצורתה ההיסטורית מקורה בתמייה ברורה. מצד אחד אין האדם אדם אלא אם כן הוא בן חורין; מצד שני אין האזרח אזרח אלא אם כן הוא משועבד לחוקי המדינה";

for another usage of the words "clear wonder" on the same issue, see: Roth, *Guide to Political Theory*, 60; Another way to put the same paradox is by Roth's words: "here is indeed an important problem which is the problem of compliance of the two requirements, the requirement to freedom on the one hand and the requirement to authority, to government, on the other hand. Is it possible to an individual to restrict his freedom and remain free man? Is it possible to the government to give to the individual the freedom of thinking and acting and remain authority?" In Leon Roth, "Towards the Basis of Democracy," in *Religion and Human Values* (Jerusalem: Magnes, 1973), 172 [Hebrew]:

"ואמנם כאן בעיה חשובה והיא הבעיה של התאמת שתי הדרישות, הדרישה לחופש מצד זה והדרישה לשלטון, לממשלה, מצד זה. כלום אפשר ליחיד, לשם צרכי שלטון, להגביל את חירותו ובכל זאת להשאיר בן חורין? כלום אפשר לשלטון לתת ליחיד את חירות המחשבה והפעולה, ובכל זאת להשאיר שלטון?"

¹⁰ Roth, *Political Theory*, 11: Roth expresses the importance of dealing with this problem in reference to Bertrand Russell's book "Freedom and Organization." Roth

freedom of man—are essential for the classical and modern Western political philosophers that Roth was influenced by.¹¹ The tension between the two calls into question the nature of the best government; since man is free by nature, there is a need to define what kind of government he should obey.¹² Herein lies the conflict between freedom and bondage in political life that is central to this paper.¹³

With this problem in mind, Roth approaches the classical writings of politics. The views of Plato and Aristotle on the city-state, Roth argues, do not manage to resolve this problem: on the contrary, they amplify it. Through an Aristotle's critique of Plato's idea of the abolition of private property and private family, Roth identifies a degradation of the freedom of man lurking in Plato's *Republic*.¹⁴ According to Roth, "Plato presented an idea of a state ruled by principles of unity and professionalism," and Roth is swift to criticize this idea, declaring that, "in Plato's state ... every citizen, his role is set ... the state is a barracks and the citizen a soldier, a soldier lacking rights or life of its one."¹⁵ The lack of private property and family means, for Roth, that there is no personal freedom in Plato's republic.

Aristotle's purposeful approach also does not resolve the problem. Aristotle argues that some people are "slaves by nature" as other are noble by nature.¹⁶ For Aristotle, the scale of purposes and hierarchy is natural to

writes: "the combination of the two words expresses political theory's consistent interest. Life is impossible without both freedom and organization; is it possible to combine the two? This is the question, and the temporary answer to it is practically the rectification of society in every generation":

"ציורן של שתי מילים אלה מבטא את עניינה המתמיד של תורת המדינה. אין החיים אפשריים בלי החירות והארגון ביחד; אך כלום שניהם ביחד אפשריים? זוהי השאלה, והתשובה הארעית לה למעשה הריהי תיקון החברה בכל דור ודור."

¹¹ Roth stresses the paradox in his preface to the Hebrew translation of Rousseau's *Du Contrat Social*. There, Roth writes among other things: "freedom on the one hand and bondage on the other hand: who will come and reconcile these two apparent irreconcilables?" Leon Roth, introduction to *Du Contrat social*, by Jean-Jacques Rousseau, trans. Y.Or (Jerusalem: Hebrew University Press, 1932; 2nd ed. 1947; rev ed. 1950), vi [Hebrew].:

"חירות מצד זה ושעבוד מצד זה: מי יבוא ויפשר בין שני הדברים הללו הנראים כסותרים זה את זה בהחלט?"

¹² Cf. Roth, *Political Theory*, 9: Roth shows diversity in his ways of presenting the problem. "at the basis of all [...], lies a deep and central issue, which is the problem of the essence of the political organization. To which authority should we yield? Generally, what is the political discipline and the political obligation? Why, and for what purpose, do we accept the burden of the state?":

"ביסודם של כל המקצועות הנזכרים טמון עניין עמוק ומרכזי והוא בעיית עצם טיבו של הארגון המדיני. מהו השלטון שנשמע לו; מהי בכלל המשמעת המדינית והחיוב המדיני; משום מה, או לשם מה, מקבלים אנו על עצמנו עול מלכות?"

¹³ Cf. Bertrand Russel "Philosophy and Politics," 1-21 in *Russel Unpopular Essays* (New York: Routledge, 2009).

¹⁴ Roth, *Political Theory*, 57.

¹⁵ Leon Roth, *Education and Human Values: Chapters on the Involvement of Humanism in Education* (Tel Aviv: Dvir, 1949), 173 [Hebrew].

¹⁶ Aristot. Pol. 1.1255a

human society. Aristotle's conception means that every person has a specific purpose in the social order determined by his position in this hierarchy. Roth, on the other hand, argues that, "freedom is not achievable within the framework of pre-determined ends and top-down impositions."¹⁷ Therefore, the problem is not resolved.

Roth also presents, and problematizes, the Sophistic formulation of the social contract theory. For the Sophists, social contract theory wholly explained the formation of the state and obedience to its laws, and they rejected the notion of ethics as an essential component of the state. They viewed human laws as merely artificial agreements which express the will of the strongest and is detached from ethics. Roth argues that a social contract such as this, based solely on agreements that expresses the will of the strong and neglects ethics, inevitably leads to tyranny. Tyranny is the best example of the will of the strongest that is lacking the individual freedom. "The end of the contract notion," he writes, "is the permission of its cancellation by the tyrants and the justification of the government by force."¹⁸ As this paper will show, for Roth a law cannot be justified merely because it is agreed upon: it must also be moral. For now it is sufficient to note that for Roth, the ancient Greek views of politics do not reconcile the freedom of the individual with political life.

A salient modern attempt to resolve the conflict between political freedom and bondage appears in Rousseau's social contract. Rousseau's awareness of this conflict is evident in his example of the "Venetian Republic's ships of hard labour, the word 'freedom' ... inscribed unto its decks, as if those condemned to hard labour found therein their freedom."¹⁹ According to Rousseau, the criminals' *a priori* consent to the state laws as part of a democratic regime is the justification for their punishment. The result is that they are free in their hard labour since they obey themselves. For Rousseau, it is through the *volonté générale* (general will) that the society embodies and carries out the true will of all its members. Thus, the verdict of hard labour embodies the true will of all members of society. Then the conflict between freedom and bondage is resolved. For Rousseau a human is

¹⁷ Roth, *Political Theory*, 59:

"אין חירות אפשרית בתוך מסגרת התכליות הנקבעות מראש ומלמעלה";

for an example of Roth's critic of the political conception of Aristotle see also footnote 28.

¹⁸ Roth, *Political Theory*, 23:

"וכך סוף רעיון האמנה התרת ביטולה על ידי העריצים והצדקת שלטון האגרוף"

Cf. Roth's discussion of relativism from the biblical perspective: Leon Roth, "Jewish Thought in the Modern World" in *The Legacy of Israel*, ed. Edwyn R. Bevan and Charles Singer (Oxford: Clarendon Press, 1927), 446.

¹⁹ Leon Roth, *Government of the People by the People: Fundamentals of Democracy* (Tel Aviv: Yavneh, 1949), 26 [Hebrew];

"[רעיון זה קיבל ביטוי חריף בפרדוכסון ידוע שמזכיר אותו רוסו]. על אוניות עבודת הפרך של הרפובליקה הוונציאנית היתה חרותה המילה "חופש", כאילו האזרחים שנדונו לעבודה קשה זו מצאו בה את חירותם."

not fully “human” unless he is a citizen.²⁰ However, Roth cannot accept Rousseau’s concept of the general will because, for Roth, it actually disregards the individual and results in his enslavement to the government.²¹

Roth rejects both ancient and modern social contract theories (those of the Sophists and Rousseau), as well as Plato and Aristotle’s conceptions of the city-state as insufficient to resolve the central problem. Roth’s conclusion concerning this problem is explicit: “as far as I know, no one has succeeded in answer it with a theoretical answer.”²² He defines both ancient and modern conceptions of the political as *monistic*—characterized by a unity of the mind and a unity of the will—“which necessarily avoid the requirements of the individual.”²³ Theoretically speaking, the conflict between freedom and bondage is inherent to political life and cannot be resolved. As this paper will show, Roth’s contribution to mitigating this conflict takes place on a practical level.

2. From Theory to Practice

Since the theoretical conflict between the requirements of human freedom and the burden of the state cannot be resolved, Roth develops a practical suggestion to mitigate this conflict. The cornerstone of Roth’s view of politics is his rejection of the utilitarian social contract in favour of an ethical view. He writes:

The purpose of the state is its citizens and the improvement and enhancement of their lives. The citizens are not appreciated by the virtue of the state in which they belong. But we appreciate the state according to the quality of the citizens which it designs and cultivates; and there are states which deserve to be destroyed.²⁴

For Roth, ethics is the foundation of the state, and therefore the only thing that matters when measuring the value of a state or a country.

Roth concurs with the Greek philosophers that ethics is the end of the state. In Roth’s interpretation of *Crito*, Roth emphasizes Socrates’ answer to

²⁰ Roth, *Political Theory*, 95-96.

²¹ In addition, Roth makes efforts to explain why “general will” actually does not exist. Cf. Roth, *Political Theory*, 105, 110-113.

²² Roth, “Towards the Basis of Democracy,” 172:

“עד כמה שידוע לי לא הצליחו להשיב עליה תשובה עיונית.”

²³ Roth, *Political Theory*, 60:

“אפלטון ואריסטו ראו את המפתח ברעיון השכל המשותף לכל; העולם החדש חפש את הפתרון לא באחדות השכל אלא באחדות הרצון. ואולם זאת הצרה שכל פתרון “מוניסטי” מתעלם בהכרח מדרישות היחיד.”

²⁴ Roth, *Political Theory*, 113:

“תכליתה של המדינה היא היא אזרחיה ושיפורם ושכלולם של חייהם. אין מעריכים את האזרחים לפי מעלת המדינה שאליה הם שייכים. מעריכים את המדינה לפי טיב האזרחים שהיא מעצבת ומטפחת; ויש מדינות הראויות להחרב.”

the question of why he (Socrates) does not escape from prison to save his life: it is because the goal of life is not life itself but the “good life.” Roth also refers to the second part of the name of Plato's Republic, “On Justice,” as proof that ethics is the end of Plato's state.²⁵ Likewise, Roth opens his chapter on Aristotle's view on politics by asserting that the essence of Aristotle's politics is that, “... it [the city-state] comes into existence for the sake of life, [but] it exists for the good life,”²⁶ thus presenting ethics as the centre of political life. In accordance with this view, Roth stresses that the purpose of political life is ethics, noting that, “the organized social life has a fundamental purpose which is a moral purpose.”²⁷ This constitutes a turn towards the classical conceptions of politics.

One prominent implication of Roth's ethical conception of politics concerns in his opinion regarding the education of citizens.²⁸ Protagoras argues for education that enables pupils to acquire merely social tools, claiming that behaving in accordance with accepted views is sufficient to make one a good citizen. Socrates responds that education should have a clear moral end, and that the good is detached from the public opinion.²⁹ While adopting Socrates' view that it is necessary for education to have a moral program, Roth stresses that the state and its laws are created for the individual and his moral development.³⁰ Therefore, for Roth a man should be active in shaping his path in light of ethics rather than passively obey social customs.³¹

While Roth emphasizes the ethical dimension of Greek political thought, he is also adamant concerning the superiority of biblical ethics. Roth argues that the Western culture has two historical sources: Greece and Israel. While the Greeks excelled in research and understanding reality, “the people of Israel excelled in the pursuit of justice: they asked to change things in order to make them the best they could be...while the Greeks gave the Western

²⁵ Roth, *Political Theory*, 26:

”לא לחינם ניתן לספר ... שם הלוויא “או על הצדק” ... [הספר] מטפל בצדק כמהותה של המדינה, ובחברה כביטוי של הצדק.”

²⁶ Aristotle. Politics. 1.1252b. Aristotle, *Aristotle in 23 Volumes*, Vol. 21, trans. H. Rackham (Cambridge, MA: Harvard University Press, 1944).

²⁷ Roth, *Political Theory*, 15:

”הרי תכלית יסודית לארגון החיים החברתיים והיא תכלית מוסרית.”

²⁸ For a discussion about Roth's educational conception see: Jan Katzew, “Leon Roth, His Life and Thought: The Place of Ethics in Jewish Education,” (PhD diss., The Hebrew University of Jerusalem, 1997).

²⁹ Cf. especially Plato, Protagoras, 325c-326e. Plato, *Plato in Twelve Volumes*, Vol. 3, trans. W.R.M. Lamb (Cambridge, MA: Harvard University Press, 1967).

³⁰ Roth, *Education and Human Values*, 172: From an individualistic point of view Roth is attacking Aristotle for claiming that “we ought not to think that any of the citizens belongs to himself, but that all belong to the state, for each is a part of the state, and it is natural for the superintendence of the several parts to have regard to the superintendence of the whole” (Aristot. Pol. 8.1337a).

³¹ Cf. Roth's reference to Spinoza, Mill and Locke about the importance of the individual as the state's end. Roth, *Education and Human Values*, 18, 56, 165, 168-169.

world science, the people of Israel gave it ethics.”³² The ethical relevance of ancient and modern Jewish texts, including the Bible and rabbinic literature, was one of Roth’s primary concerns. Shortly before his death, he formulated his basic conclusion:

For traditional Jewry the Torah – that is, please remember, *Judaism* – was essentially and primarily a doctrine of life and love and kindness and fair dealing and pity. It is no use anybody saying anything to the contrary, be he anthropologist or theologian or moral philosopher or mythologist. *For Jewry* the Law, the Torah, is a law of life and kindness and love and decency and pity. This being the guiding principle, whatever appears contrary to it must be explained away.³³

Roth stresses the Jewish ethical point of view, trying to draw out and illuminate a “Jewish ethics.”³⁴ He defines it according to explicit and simple imperatives which, in his opinion, characterize “good” and “wrong” in the Hebrew Bible. On the side of good there is justice and judgment, clean hands and a pure heart, doing justly and loving mercy, and walking humbly with God. On the side of the bad there is sexual malpractice, human sacrifice, the breaking of vows, and the grinding of the face of the poor.³⁵

The practical dimension of Jewish ethics is evident for Roth. Where he deals with the relevance of Judaism to the modern world Roth states: “The Hebrew Bible ... demands not thinking but doing, not a creed but a moral way of life.”³⁶ He states unequivocally that, “this side of Hebraism, the passion for Justice in the concrete, far from being dead, is one of the living influences of our time.”³⁷ In stressing the practical dimension of morals, Roth integrates his classical and Jewish background with what he sees as Aristotle’s emphasis in the *Ethics* on a “practical aim” as opposed to merely theoretical investigation.³⁸

³² Roth, *Education and Human Values*, 146-147. Cf. Leon Roth, “Jewish Thought as a Factor in Civilization,” in *Is There a Jewish Philosophy?*, 29-30.

³³ Leon Roth, “Moralization and Demoralization in Jewish Ethics,” *Is There A Jewish Philosophy?*, 137-138.

³⁴ For example, see Roth, “Moralization and Demoralization in Jewish Ethics,” 128-143.

³⁵ Roth, “Jewish Thought as a Factor,” 33. For another example of his discussion about the nature and practical implications of Jewish Ethics, see: Roth, *Education and Human Values*, 22-25.

³⁶ Roth, “Jewish Thought in the Modern World,” 466.

³⁷ *Ibid.*, 468.

³⁸ Aristotle, *Nicomachean Ethics*. 2.2.1, in *Aristotle in 23 Volumes*, Vol. 19, trans. H. Rackham. (Cambridge, MA: Harvard University Press, 1934); Roth quotes this point in Roth, “Education and Human Values,” 51; According to this conception of philosophy, Roth criticizes Descartes for concentrating on concepts as the aim of philosophy, claiming that “however not the concept, but the reality, is the essence”: Leon Roth, “Philosophy and Ahad Ha’am,” in *In Memory of Ahad Ha’am* (Jerusalem: The University Press, 1937), 11 [Hebrew].

3. Jewish Ethics

The most fundamental element of Jewish ethics for Roth is the knowledge of One God. God is, for Roth, the creator of heaven and earth, standing independently and apart from the world as the “impartial spectator of the moralists,” or with a “view of the whole of the philosophers.”³⁹ God stands above, equally and impartially, before all.⁴⁰ For Roth, God's independence from the world establishes an objective and impartial point of view as a condition for the existence of ethics. Therefore, “in his impartiality he is ‘good,’ that is, fair and equal to all,” and thus, God is the only “who may be said ... to be good.”⁴¹ God's goodness is the foundation for ethics,⁴² but once ethics is established, the personal interest—as a guiding principle of human behavior—must be rejected.⁴³ Thus, this is the starting point of Roth's rejection of utilitarianism in favour of ethics.

The second point of Roth's conception of Jewish ethics is the connection between the knowledge of the One God and the love of Him. Roth argues that love or *Eros* is the driving force behind human development. He in fact writes that, “the driving force of man in his development is *Eros*, which is the aspiration of the imperfect towards perfection ... following Plato we have used the word aspiration, but the more accurate word is imitation.”⁴⁴ Here lies the notion of *Imitatio Dei*. With the knowledge of God and His goodness as the basis of ethics, love appears as the aspiration of the imperfect man towards perfection. Imitation of God is the principle by which man can strive towards perfection. This imitation of the good, righteous, and pure, ways of God is the essence of ethics.⁴⁵ The “unitariness” of God implies for Roth “one world, one humanity, one universal order, one norm of logic, one

³⁹ Leon Roth, “The Goodness of God,” *Journal of Philosophical Studies* 2, no. 8 (1927): 512-513; See also Leon Roth, *Judaism, A Portrait* (London: Faber and Faber Limited, 1960), 21: “The ethical objection to polytheism is that it makes possible a variety of moral standards ... monotheism cuts this away. There is one standard only, one right and wrong.”

⁴⁰ Leon Roth, “*Imitatio Dei* and the Idea of Holiness,” in *Is There A Jewish Philosophy?*, 26.

⁴¹ Roth, “The Goodness of God,” 513.

⁴² *Ibid.*, 503-515.

⁴³ Roth, *Judaism, A Portrait*, 167: “... a discussion between Socrates and his friends on the nature of justice; and one of the younger man says that, if we wish to persuade people to live the life of justice, we must show them not that the life of justice ‘pays dividends’ but that it is good in itself ... Is it not a commonplace that the Bible is on prolonged appeal to pains and penalties; not to morality but to interest? ... The basis of Biblical morality is far from being utility in any shape ... Goodness and interest stand opposed to one another.”

⁴⁴ Roth, *Education and Human Values*, 37; Cf. Plato Tim. 29e, and Plato Sym. 210b, in *Plato in Twelve Volumes*, Vol. 9 trans. W.R.M. Lamb (Cambridge, MA: Harvard University Press, 1925)..

⁴⁵ Roth, *Education and Human Values*, 38.

standard for morals.”⁴⁶ By adopting these principles and rejecting the relativist point of view, Roth reinscribes truth and justice as the attributes of God that man should imitate. The proper love of God and His imitation by man is expressed in God’s calling to Abraham, “...in order that he [Abraham] should command his children and his household after him to practise the way of God, that is to do justice and judgement.”⁴⁷ Thus, Abraham, the imitator of God’s ways, is named by Isaiah, “My Lover.”⁴⁸ Abraham, in his imitation of God fulfilled his love of God, thus he is God’s “Lover”.

The two principles, one of imitation and the other of freedom, may appear contradictory. Roth clarifies that imitation is not an artificial repetition of another’s behaviour that undermines the independence of the imitator. On the contrary, by imitating the *ideal*, the imitator, “understands and acts by his own reason. He is a vibrant and creative personality.”⁴⁹ The wisdom of man is an example of such a principle of imitation towards perfection: we cannot be completely wise—“*sophoi*”—but only lovers of wisdom—“*philosophoi*”—“i.e. aspire for wisdom.”⁵⁰

According to Roth, since God delights in moral action, perfection for man lies in the imitation of God and His ways. Jeremiah declares: “but let him [man] that glorieth glory in this, that he understandeth, and knoweth me, that I am the Lord which exercise loving-kindness, judgement and righteousness in the earth; for in these I delight.”⁵¹ Maimonides in turn explains that there is a duty to know God and to imitate—on earth—His moral acts, which are “loving-kindness, judgement and righteousness.”⁵² Through these passages, among others, Roth lays out the centrality of the imitation of God in Judaism.

Ethics for Roth is based on the idea of the knowledge of God, the love of Him and His imitation. The next stage in ethics for Roth is its practical implications. In his words, “the right way of life is conceived of as the detail of the general principle of the love of God, and by it [the right way of life] the love of God is preserved from becoming an empty formula or an abstract desiderium.”⁵³

While Roth argues that the implications of ethics are universal and oblige all mankind, their origins are distinctively Jewish. Reading Maimonides, Roth attributes these ideas to the rabbinical tradition, stressing that “the idea of serving for love is a rabbinic commonplace,” and quotes Maimonides as follows:

⁴⁶ Roth, *Judaism, A Portrait*, 21-22.

⁴⁷ Roth’s translation of Genesis 18:19 in Roth, *Judaism, A Portrait*, 15, 33.

⁴⁸ Isaiah 41:8 in Roth, *Judaism, A Portrait*, 169; Leon Roth, “Baruch Spinoza His Religious Importance for the Jew Today” in *Is There A Jewish Philosophy?*, 101.

⁴⁹ Roth, *Education and Human Values*, 54, 178, 180.

⁵⁰ *Ibid.*, 70-71.

⁵¹ Roth’s translation of Jeremiah 9: 23 in Roth, *Judaism, A Portrait*, 170.

⁵² Roth’s translation of Maimonides, *The Guide for the Perplexed*, III, 54. in *ibid.*, 170-171.

⁵³ Roth, “Jewish Thought as a Factor,” 34.

Whoever serves God out of love occupies himself with the study of the Law and the fulfillment of the commandments, and walks in the path of wisdom, impelled by no external motive whatsoever, moved neither by fear of calamity nor by the desire to obtain material benefits; such a man does what is truly right because it is truly right, and ultimately happiness comes to him as a result of his conduct. This standard is indeed a very high one; not every sage attained to it. It was the standard of the patriarch Abraham whom God called His “lover” because he served only out of love. It is the standard which God, through Moses, bids us achieve, as it is said: “and thou shalt love the Lord thy God.”⁵⁴

In Roth’s writings, the connection between the idea of One God and the love of God as a motive for moral action becomes clear. Interpreting the Shema Yisrael [one of the Jewish fundamental texts] he states: “It is an amalgam of knowledge, action and love, the knowledge preceding the love and issuing in action.”⁵⁵ First we reach the knowledge of God, second we love Him and third we act in light of this love by His imitation.

3.1 Political Implications

Having investigated how for Roth the knowledge of God, the love of Him, and His imitation, form the basis for Jewish ethics, this paper now presents the political implications of this concatenation. The main political implication, Roth suggests, is the principle of love of one’s fellow man. This will be demonstrated as a political implication that mitigates the tension between freedom and bondage.

Roth addresses the political implications of Jewish ethics through the analysis of a well-known passage of the Sifra on Leviticus: “Rabbi Akiva said: ‘And thou shalt love thy neighbour as thyself’—this is a great principle in the Law. Ben Azzai said: ‘This is the book of the generations of man’—this [Ben Azzai’s principle] is a greater principle than that [Rabbi Akiva’s principle].”⁵⁶ Since the text does not offer explanations, the question for Roth is why Ben Azzai’s principle is considered greater than Rabi Akiva’s. Here is not the place to assess whether Roth is correct in his interpretation. It is enough to understand the way that he interprets this controversy in order for us to understand his approach. The reconstruction that Roth is adapting to this controversy, is based upon the commentary of the Matnot Kehunah:

Rabbi Akiva said: ‘And thou shalt love thy neighbour as thyself’—this is a great principle in the Law. Ben Azzai said: ‘The verse ‘this is the book of the generations of man; in the day that God created man, in the likeness of God

⁵⁴ Roth, *Judaism, A Portrait*, 169; Maimonides, *Mishneh Torah*: Repentance, vol. 1, trans. Simon Glazer (New York: Maimonides Publishing Co., 1927), 10:3-4.

⁵⁵ Roth, “Jewish Thought as a Factor,” 34.

⁵⁶ Translation of *Sifra Kdoshim* 4:12 in Roth, “Moralization and Demoralization,” 133.

made he him' is a greater principle. It teaches us that we must not say [as we might, if we only loved our neighbour *as ourselves*]: 'Since I have been condemned, let *my fellow too* be condemned just as I was; since I have been cursed, let *my fellow too* be cursed just as I was'. Rabbi Tanhumah [a later teacher] explained: 'if you do that, know who it is whom you condemn: you condemn God in whose likeness man was made'.⁵⁷

For Roth, this controversy is an example of classical Jewish literature arguing rationally about morals. He presents Rabbi Akiva's argument as having the character of a social contract, in which one will love one's neighbour as one will be loved in society. Ben Azzai, on the contrary, argued that the love of one's fellow man is based upon the idea that man was created in the likeness of God. For Roth, Rabbi Akiva's kind of love is not worthy. The danger of disconnecting the love of God from the love of man is considerable, since, as Roth puts it: "If Akiva's principle is to be the determining principle in morals, moral action (Ben Azzai argues) would disappear."⁵⁸ Without the idea of the One God, the love of Him and His imitation, as the basis for ethics, there is no room for love of man. Rabbi Tanhumah explains the connection between the love of God and the love of man: if you condemn a man, who was created in the likeness of God, it is God Himself that you condemn. Thus, the love of one's fellow man is not based upon one's will but is actually one's moral duty. Unsurprisingly, Roth's interpretation of the controversy reiterates his rejection of utilitarianism and social contract as the sole basis for ordered society, in favour of Jewish ethics.

Roth explains that Rabbi Akiva eventually changed his mind, and adopted Ben Azzai's conception of love of man which was created in the likeness of God. In *Pirkei Avot*, Rabbi Akiva said: "Beloved is man in that he was created by the likeness, even greater love was shown him in making him conscious of the fact that he was created by the likeness."⁵⁹ The imitation of God's ways includes showing love for one's fellow man. This connection between the love of God and the love of man in Judaism is a basic element for Roth. God's impartiality implies a universalistic view of the world, which does not differentiate between a "fellow Jew... or even neighbour, but *man*, and man ... as 'created by the likeness'."⁶⁰

The ethical judgment of politics has additional important implications. One such implication is Roth's criticism of the lack of morals in Spinoza's interpretation of the bible. Roth does not accept Spinoza's interpretation of the covenant between the people of Israel and God as a merely a political act while ignoring its religious and ethical aspects. According to Roth, the covenant is a distinct religious act by which the bible distinguishes the people of Israel. The Torah symbolizes a way of life that created and shaped a

⁵⁷ Roth, "Moralization and Demoralization" 134; Roth, *Judaism, A Portrait*, 173.

⁵⁸ Roth, "Moralization and Demoralization," 135.

⁵⁹ Ibid.; Roth, *Judaism, A Portrait*, 95.

⁶⁰ Roth, "Moralization and Demoralization," 135. For more about his universalistic view, see for example the article "Jewish Thought in the Modern World" by Roth, mentioned previously.

people and not a way of life that was shaped by a people. Therefore, Roth rejects Spinoza's attempt to strip the bible of the ethical call which is an essential part of the Jewish religion. This call is also God's calling to Abraham to do justice and judgment, and, according to Roth, without these ethical duties there is no Judaism.⁶¹

Another implication of the ethical approach to politics can be derived from the way Roth explains the word "Torah," a word that originates from the Hebrew word "Teaching" (הוראה). Against autonomic conceptions of human will, the Bible states that human will is not in fact sufficient to establish the law. On the contrary: "When men see their will as the sole source and substance of law, the result is chaos and destruction."⁶² In the discussion between Rabbi Akiva and Ben Azzai, it is clear why Roth thinks that human's will by itself leads to destruction. According to the bible, the law should always "be engraved on the heart." The origin of the law is external to man, "but in man's highest development he need not be taught it because it is written within."⁶³ Man evolves in accordance with his imitation of God, from imperfection towards perfection, thus developing his ethical personality and engraving on his heart the—external and moral—law. Through the love of God and His imitation, man moves from "enslavement to the external law" towards "internal freedom." This is the essence of the practical way that Roth offers to mitigate the conflict between freedom and bondage in politics.

For Roth, political freedom does not mean that we can act in accordance with our desires. As we have seen, Roth rejects human will as the sole basis of the law: "... this freedom [based on will alone] is not freedom and not worthy. The important thing is not that we say what we wish, but that what we wish to say would be worthy of saying." If freedom is meant to enable men to do everything they desire, then "it is a total anarchy."⁶⁴ What is essential according to Roth is that man must have an external ethical beacon to guide him towards ethical behaviour. Roth quotes Aristotle: "... there exist certain persons who are essentially slaves everywhere and certain others who are so nowhere."⁶⁵ Roth argues that "it is clear that the freedom of a free man is not external (economically or politically) but internal: it is the freedom from enslavement to ignorance and desires."⁶⁶ The one who acts according to his own will is not really free, but slave. The free man has internal freedom, that is, he accepts the ethical external law and by love of God and His imitation, engraves it on his heart.

The Practical answer Roth has to offer to the conflict between freedom and bondage lies in the idea of "love." Love enables Roth to explain the condition in which man is found simultaneously in bondage and free.

⁶¹ Roth, "Baruch Spinoza," 101-102.

⁶² Roth, "Jewish Thought as a Factor," 39.

⁶³ Ibid.

⁶⁴ Roth, *Education and Human Values*, 147.

⁶⁵ Aristot. Pol. 1.1255a; Roth, *Education and Human Values*, 70.

⁶⁶ Roth, *Education and Human Values*, 73, 168-169.

However, the connection between the love of God and the political existence is not clear at first sight. It becomes clearer through the philosophical scheme that Roth has to offer. We formulate it by four stages: (1) the knowledge of God is the basis for ethics; (2) the love of God is the aspiration of imperfect man towards perfection; (3) the imitation of God is a mean to fulfill the love of God; (4) the imitation of God has practical implications in temporal life.⁶⁷ The concept of the “Kingdom of God” is the concept which expresses fully Roth's argument. Roth quotes Hobbes' claim that, “the Kingdom therefore of God is a real, not a metaphorical kingdom.”⁶⁸ Roth argues that religion and moral action are not identical, but that they are indissociable. “It is this central fact which is crystallized in the phrase the 'Kingdom of God'. The goal is an ordered society, a human community.”⁶⁹ The knowledge of God, the love of Him and His imitation are meant to establish a moral society in which individuals are characterized by internal freedom and worthy behaviour. That society symbolizes the Jewish “good life” and the practical suggestion that Roth has to offer.

According to Roth, freedom cannot exist without bondage. As mentioned above, the freedom we strive for is “internal.” *The bondage to law means the imitation of God and internalization of the moral law into one's personality by writing it on the heart, and realizing it in reality.*

Freedom is freedom to live under law. Freedom is the basis of all community life; law—justice—is its framework and guarantee; and law like freedom, is the more firmly established when written in the heart. Bondage is of many kinds. It may be spiritual as well as material. The ultimate bondage is of the mind ... He is thus the supreme liberator.⁷⁰

Absolute freedom is only achievable by unifying the external moral law with human will. However, according to Roth, man cannot reach this perfection. He can only love God, imitate Him and being close to Him. Even the most ethically developed person will be always in bondage to the external law. But without bondage to the external moral law there would be no freedom at all but a bondage to ignorance and desires. Unlike the law which is detached from ethics and based solely on human's will that leads to bondage, *the ethical law drives man towards freedom and perfection* even

⁶⁷ Also see: Leon Roth, *Spinoza* (London: Benn, 1929, 2nd ed. 1954), 142-143. “... he is the most perfect man who is united with God, the most perfect Being of all ... this conception is offered as a practical rule of life for the generality of mankind....”

⁶⁸ Thomas Hobbes, *Leviathan: Or the Matter, Forme and Power of a Commonwealth, Ecclesiasticall and Civil*, ed. Michael Oakeshott (Oxford: Blackwell, 1946), 269. also see online:

<http://oregonstate.edu/instruct/phl302/texts/hobbes/leviathan-g.html#CHAPTERXXXV>, accessed May 18, 2012; Roth of course rejects the Hobbesian state which is “founded on fear and maintained by terror”: Roth, *Education and Human Values*, 58.

⁶⁹ Roth, *Judaism, A Portrait*, 58.

⁷⁰ Cf. Roth, “Jewish Thought as a Factor,” 72.

though absolute freedom can never be achieved. This is the practical answer Roth offers, in which ethical law (Torah) imposes a unique bondage that leads man towards freedom.⁷¹

3.2 Love and Citizenship

One prominent terrestrial expression of Roth's ethical view of politics is his concept of citizenship. As we have shown, the notion of love is fundamental to his understanding of politics and central to his attempt to mitigate the conflict between freedom and bondage. In Roth's writings on democracy, equivalent notions of love come into play in his definition of citizenship. We must begin to analyze Roth's conception of citizenship by means of the question that he presents concerning the reason why voting and participation in election is a fundamental duty of citizens in a democracy. Perhaps unsurprisingly, Roth rejects the view that every citizen should deal with his own interests and vote with his personal interests in mind.

The answer of Roth is of a moral principle of “democratic responsibility” (אחריות דמוקרטית), which means that every voter should see himself as the only voter that will make a decision about the issues at stake for the public. The citizen in democracy should see before his eyes the good of the others.⁷² A citizenship that is characterized by a “democratic responsibility,” is the basis for ethical legislation that liberates the individual. The ethical law is the only one that guides towards internal freedom. Contrariwise, a law that is based on human's will guides towards enslavement to ignorance and desires.

To support his idea of “democratic responsibility,” Roth invokes Maimonides' view that “It is, therefore, necessary for every man to behold himself throughout the whole year in light of being evenly balanced between innocence and guilt; thus if he commit one sin, he will overbalance himself and the whole world to the side of guilt, and be a cause of its destruction; but if he perform one duty, behold, he will overbalance himself and the whole world to the side of virtue ...”⁷³

In the same spirit, Roth defines the good citizen of a democracy as the one who has a “sense of responsibility,” and sees the interests of the public as his own.⁷⁴ This is the manifestation of Roth's principle of love in the context of citizenship. His philosophical scheme—comprised of the knowledge of God, the love of Him, the practical dimension of His imitation, and the love of one's fellow man—shapes this view of citizen's duties as part of his internal freedom. The duty of the citizen stems from the love of one's fellow

⁷¹ It is important to note that Roth does not advocate for theocracy. On the contrary, he opposed to it. Cf. Warren Zev Harvey, “The Religious-Political paradox according to Leon Roth,” in *Religion and State in Twentieth-Century Jewish Thought*, ed. Aviezer Ravitzky (Jerusalem: Israel Democracy Institute, 2005), 357-366.

⁷² Roth, *Government of the People*, 31-32.

⁷³ Maimonides, *Mishneh Torah*: Repentance, 394, 3:4.

⁷⁴ Roth, *Government of the People*, 70-74.

man. The most important democratic expression of the notion of “love” is “responsibility.” In the same vein, Roth uses terms such as “vigilant interest,” “independent civic life,” “free life” and “vigilance and democratic responsibility,”⁷⁵ which express his view of the worthy citizenship.⁷⁶

A representative democracy in which the people participate in the political process enables the individual, motivated by his love for his fellow man, to act freely. In the same way, Roth shows some warmth towards the model of direct democracy, although ultimately rejecting it for the peril of a majoritarian tyranny.⁷⁷ The democratic model that he saw as favorable was the English representative model.⁷⁸ Ideally, in a representative democracy in which the citizen participates in the political process in its entirety, the citizen is effectively obeying himself.⁷⁹ However, this is only possible when the political process initiates active citizenship through encouraging the voicing of opinions, discussion of them, and the achievement of compromise. Roth offers a definition of democracy as “a regime by talks,” an expression of the essential nature of citizen's political participation.⁸⁰ For Roth, the will is not enough. What are needed are ethical standards that guide the legislative process. The law is the “requirements of the mind when he is not occupied by desires, tendencies and personal aspirations” of citizens.⁸¹ This is the ideal and ethical law that Roth asks for. The aspiration for ethical perfection, expressed in a process of legislation, enables the citizen to be both in bondage and free. The citizen is in bondage to the ethical laws while free to create and influence them in light of the principle of love of man. Law is not the opposite of freedom, Roth explains. On the contrary, law is the practical guide of freedom. Political freedom needs bondage to the law, and writing the law on the heart assists man's development through imitation of God and the love of one's fellow man.

Conclusion

The question of this article concerns the conflict between freedom and bondage in politics that is central in Roth's writings. While rejecting Western conceptions of politics as not sufficient to answer that question, Roth develops a philosophical argument based on Jewish ethics. The knowledge of God, the love of God, His imitation and its practical manifestation as the love

⁷⁵ The Hebrew original phrases are:

“התעניינות ערה”, “חיי אזרחות עצמאית”, “חיי חופש”, “ערות ואחריות ציבורית”

⁷⁶ Leon Roth, “The Practical Import of the Sovereignty of the People” in *Educating the Citizen* (Jerusalem: Magnes Hebrew University, 1950), 37, 41 [Hebrew].

⁷⁷ Roth, *Political Theory*, 99.

⁷⁸ See for example: Leon Roth, *Seven Chapters on England and English Democracy* (Tel Aviv: Yavneh, 1945) [Hebrew].

⁷⁹ Roth, “National Discipline,” 159-160.

⁸⁰ Roth, *Government of the People*, 10: “הדמוקרטיה היא שלטון על ידי דיבורים”

⁸¹ Roth, “National Discipline,” 160.

of one's fellow man, are the basic elements of Roth's ideal state, the 'Kingdom of God'. In such a society, the individual is simultaneously both in bondage and free. He is in bondage to the external ethical law, but when he engraves the law on his heart, he is free. However, since perfection is not achievable, man needs to be reliably bound to an external law that can guide him—through imitation—towards freedom.

Roth's criticism of Western conceptions of politics as insufficient to answer the question of freedom and bondage, and his claim that this must be a pressing question in every society, have even more wide-ranging implications. His critique is a critique of democracy from the Jewish ethical point of view; one must not justify the act of a democratic state merely based on the fact that it involves a social contract—*one must judge it in light of the principle of love*. The fundamental basis of a state is ethics and ethics alone. A society whose state is based solely on a social contract, a society without a solid ethical basis, may one day collapse into a repressive regime.

The most effect means of preventing this collapse into a repressive regime is, according to Roth, the advancement of a particular concept of citizenship. A citizen in democracy has the ethical obligation to act with a “democratic responsibility” based on the principle of love of one's fellow man. The ideal state of Roth advances and encourages the principle of love. By this principle, Roth attains to a legislation that involves the citizens—characterized by “vigilant interest”—and whose democratic process results in laws which are ethical. The citizen is in bondage to the laws and internally free. According to this practical answer, one should approach the society one lives in and work towards a democratic ethical process that is based upon moral education. Such a democratic process would involve the active political participation of the citizens who are guided by the principle of love.

The authors of this article see in Roth's philosophical argument an important contribution to shaping the Jewish “good life” in Israel. The political discourse in Israel tends to be divided into two systems of values. One stresses arguments from a Jewish, national and particular point of view. The other promotes liberal values of human rights and universalism as opposed to Judaism. However, Roth's reconstructed argument dissolves this dichotomy. The Jewish political conception of Roth enables a political path that combines Judaism and universalism, particularism and morals, nationality and human rights. Our call pertains to all of Israeli society, whether it promotes the Jewish or the liberal set of values. It is to go back to Roth's writings in order to establish a new vision of the Jewish “good life.”

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